

		(1967) 255 Cal.App.2d 300, 307; Code Civ. Proc., § 526(a)(4)-(5) [(4) When pecuniary compensation would not afford adequate relief. (5) Where it would be extremely difficult to ascertain the amount of compensation which would afford adequate relief].) Plaintiff relies upon the declarations of Sophia Anderson and Alex Rios to establish Defendant may be liquidating assets which could be used to satisfy any future judgment against Defendant in this action. Thus, Plaintiff claims an injunction is necessary to prevent Defendant from becoming insolvent during the pendency of this case. However, the references to communications with Ricardo Perez are inadmissible hearsay and the photographs cannot be authenticated because Anderson must rely on Perez's hearsay assertions as authentication. (Evid. Code, § 1200(a)-(b).) Plaintiff's inability to obtain Perez's cooperation does not relax the evidentiary standards. Thus, the Court cannot consider any evidence from Perez. Plaintiff's remaining evidence only demonstrates a possibility that Defendant is struggling financially. Anderson's conversations with Defendant's employees and counsel's declaration listing other actions against Defendant does not demonstrate injunctive relief is necessary. Thus, the Court finds Plaintiff has failed to show the relative harms favor issuing an injunction.
12	24-01376026 <i>Zavala vs. General Motors LLC</i>	Motion for Attorney Fees Plaintiff's Motion for Attorney Fees is DENIED. The Court intends to enter an order of dismissal at the hearing. The Court has observed a trend in lemon law cases, nearly all of which settle before trial, which is absent from other civil litigation. The plaintiff files a notice of settlement of the entire case without disclosing to the Court any terms other than whether the settlement is unconditional or conditional, and then fails to follow through with filing of a request for dismissal, later filing a motion for attorney fees on grounds the parties agreed the Court would decide the issue of attorney fees and costs as part of their purported settlement. Under the facts of this case, this approach has no basis in law. "If an entire case is settled or otherwise disposed of, each plaintiff or other party seeking affirmative relief must immediately file written notice of the settlement or other disposition with the court" (Cal. Rules of Court, rule 3.1385(a)(1).) "Except as provided in (c) [conditional settlement] or (d) [compromise of claims of a minor or disabled person], each plaintiff or other party seeking affirmative relief must serve and file a request for dismissal of the entire case within 45 days after the date of settlement of the case. If the plaintiff or other party required to serve and file the request for dismissal does not do so, the court must dismiss the entire case 45 days after it receives notice of settlement unless good cause is shown why the case should not be dismissed." (Id., rule 3.1385(b).)

“If the settlement agreement conditions dismissal of the entire case on the satisfactory completion of specified terms that are not to be performed within 45 days of the settlement, including payment in installment payments, the notice of conditional settlement served and filed by each plaintiff or other party seeking affirmative relief must specify the date by which the dismissal is to be filed.” (Id., rule 3.1385(c)(1).) “If the plaintiff or other party required to serve and file a request for dismissal within 45 days after the dismissal date specified in the notice does not do so, the court must dismiss the entire case unless good cause is shown why the case should not be dismissed.” (Id., rule 3.1385(c)(2).)

The use of “must” and “shall” in these provisions establishes the mandatory nature of the Court’s duty to dismiss after the applicable time period has passed, subject only to the good cause exception. (See *Hatlevig v. General Motors LLC* (2026) 118 Cal.App.5th 644, 650 [“court entered the order to fulfill the mandatory duty to dismiss settled cases”].)

The Judicial Council has adopted for mandatory use Form CM-200, Notice of Settlement of Entire Case (Notice), a form designed to inform the court and parties a settlement has been reached. The Notice states, “the entire case has been settled” and requires the signer to state in paragraph 1 whether the settlement is unconditional or conditional. The Notice requires a signature under penalty of perjury from the filer. Due process requires a court to provide notice prior to dismissing a case, including after filing of a Notice. (*Lee v. Placer Title Co.* (1994) 28 Cal.App.4th 503, 510.)

The Court’s jurisdiction to enforce a settlement agreement depends on a clear written or oral stipulation of the parties requesting retention of jurisdiction under Code of Civil Procedure section 664.6. Otherwise, the court loses jurisdiction upon dismissal. (See *DeSaulles v. Community Hospital of Monterey Peninsula* (2016) 62 Cal.4th 1140, 1155 [parties must ask court to retain jurisdiction before dismissal deprives court of jurisdiction].)

Here, on 11/12/25, Plaintiffs filed a Notice stating the parties had reached a conditional settlement of the entire case and representing under penalty of perjury the entire case had been settled and a request for dismissal would be filed no later than 3/9/26. Other than the Notice, no party provided the court with details of the settlement, including, e.g., whether it was entered into following acceptance of a Code of Civil Procedure section 998 offer to compromise or whether the parties had agreed to request the court to retain jurisdiction to enforce settlement terms under Code of Civil Procedure section 664.6.

In reliance on Plaintiffs’ representation, on 11/21/25, the court issued an order stating a request for dismissal must be filed within 45 days after fulfillment of the conditional settlement terms. An OSC Re Dismissal was set for 3/5/26 and jury trial was vacated.

On 4/16/26, the Court continued the OSC Re: Dismissal to 8/20/26 based on Plaintiffs' status report filed 4/9/26, which stated the parties were unable to come to an agreement on Plaintiffs' attorney fees and requested a continuance of the OSC to the same date as the attorney fee hearing. Plaintiffs never filed a request for dismissal. On 12/12/2025, Plaintiffs filed a memorandum of costs, and on 3/11/2026, Plaintiffs filed a motion for attorney fees, designating a hearing date of 8/20/26. The motion stated the parties reached a settlement on 9/11/25 in which they agreed Plaintiffs were the prevailing party and Plaintiffs' fees and costs could be decided by motion. (p. 6.) Plaintiffs never filed a request for dismissal, and the parties never requested the Court retain jurisdiction under section 664.6. If Plaintiffs wished to have a motion for attorney fees heard, it was Plaintiffs' duty to file a motion and have it heard prior to the proposed dismissal date in the notice of settlement. The Court considers the filing of the Notice under penalty of perjury representing the entire case has been settled a misrepresentation to the Court if, indeed, additional law and motion over settlement terms is contemplated, as it apparently was here. Settlement of the "entire case" means just that. Even if the parties had requested the court to reserve jurisdiction under section 664.6, there would be no settlement of attorney fees to enforce, because terms were not originally agreed upon by the parties. (See <i>Levitz v. The Warlocks</i> (2007) 148 Cal.App.4th 531, 535 ["A settlement with open material terms is not a 'conditional settlement.' To the contrary, it is not a settlement at all because, like all contracts, it is not binding until the settling parties agree on all its material terms."].) Further, Plaintiffs "must follow the procedures outlined in [California Rules of Court, rule 3.1385] subdivisions (a) and (b) even if the parties settle the case and agree to dismiss under the provisions of Code of Civil Procedure section 664.6." (Advisory Com. com., Cal. Rules of Court, rule 3.1385.) And, "Code of Civil Procedure section 664.6 allows for but does not mandate the dismissal of cases with conditional settlements either upon stipulation of the parties or on the court's own motion. Subdivision (c) provides an alternative process for cases with a conditional settlement in which dismissal is not sought under Code of Civil Procedure section 664.6" (Id.) Because such issues are not material to the motion, the court will not decide whether the misrepresentation is material or potentially subject to sanctions, whether a true settlement or only an agreement to agree was reached, arguments concerning enforceability of the settlement, and/or whether some other procedure was viable. The Court rules only that the chosen course of action was not.
